



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 1, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202101477 regarding Lieutenant Matthew Harrison, Tax No. 930323 (DADS No. 2022-26751) and Sergeant Thomas Garguilo, Tax No. 949006 (DADS No. 2022-26750)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the penalties proposed by the Civilian Complaint Review Board ("CCRB") against Lieutenant Matthew Harrison and Sergeant Thomas Garguilo outweigh the committed misconduct. The event in question was captured by numerous Body-Worn Cameras ("BWC") none of which depict Lieutenant Harrison threatening to or actually damaging the apartment door of a barricaded individual. In fact, Lieutenant Harrison is captured advising Sergeant Garguilo that the apartment door will not be forced open.

Unlike Lieutenant Harrison, Sergeant Garguilo erroneously informed the barricaded individual that her apartment door will be forced open if she did not open it voluntarily. This statement was improperly made as the barricaded individual was wanted on active I-Cards and members of the service, including Sergeant Garguilo, required an Arrest Warrant once the individual retreated back into her apartment and locked the door. Nonetheless, the available evidence captured by BWC, evinces a lack of understanding of the relevant law by Sergeant Garguilo rather than any ill intent to forcefully damage property of the barricaded individual.

The allegation that both Lieutenant Harrison and Sergeant Garguilo improperly entered the apartment of the barricaded individual is supported by the available evidence, including BWC footage. While improper, the entry was not maliciously made. Rather, both Lieutenant Harrison and Sergeant Garguilo made the decision to enter the apartment based upon faulty understanding of the relevant laws. Thus, the record in this case is clear that both Lieutenant Harrison and Sergeant Garguilo would most benefit from retraining rather than an imposition of command discipline.

Therefore, in the spirit of progressive discipline, and based on the foregoing facts, the Police Commissioner has determined that Lieutenant Harrison is to receive No Disciplinary Action for allegedly violating Administrative Guide Procedure No. 304-06(1) (Prohibited Conduct/Threat to Damage Property) and will receive Training from the Legal Bureau as it related to the circumstances under which an officer may enter a private dwelling without a warrant, in accordance with the Legal Bureau Bulletin Vol. 44, No.2 (Exceptions to the Payton Rule). Sergeant Garguilo will receive Training from his Commanding Officer as it relates to the officer's pledge to protect the property of their fellow citizens, in accordance with the Patrol Guide Procedure No. 202-02 (Mission, Vision, and Values of the New York City Police Department) and Training from the Legal Bureau as it related to the circumstances under which an officer may enter a private dwelling without a warrant, in accordance with the Legal Bureau Bulletin Vol. 44, No.2 (Exceptions to the Payton Rule).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office